

Conservation Commission

Meeting Minutes

Monday, December 16, 2024

Remote meeting via Zoom

Members Present: Carolyn Nielsen – Vice Chair, Henry Hidell, Robert Mosher, Thomas Roby, and Laurie Freeman

Members Absent: Crystal Kelly and Nina Villanova

Staff Present: Shannon Palmer – Conservation Officer & Natashja Molina – Administrative Assistant

Vice Chair Carolyn Nielsen opened the meeting at 7:06PM and read the following statement:

“This meeting is being held remotely as an alternate means of public access pursuant to Chapter 2 of the Acts of 2023 and all other applicable laws temporarily amending certain provisions of the Open Meeting Law. You are hereby advised that this meeting and all communications during this meeting may be recorded by the Town of Hingham in accordance with the Open Meeting Law. If any participant wishes to record this meeting, please notify the chair at the start of the meeting in accordance with M.G.L. c. 30A, § 20(f) so that the chair may inform all other participants of said recording.”

Business Items:

1. Minutes

10/21/24 – passed over

11/18/24 - Commissioner Freeman made a motion seconded by Commissioner Hidell to approve minutes from the 11/18/24 meeting as drafted. The motion passed by a roll call vote 5-0.

In Favor: Carolyn Nielsen, Henry Hidell, Robert Mosher, Thomas Roby, and Laurie Freeman

Opposed: None

2. Requests for Certificate of Compliance

a) CONT. 300 Linden Ponds Way, DEP No. 034-0708 (from 11/18/24)

Vote: Commissioner Freeman made a motion, seconded by Commissioner Hidell, to continue consideration of Request for Certificate of Compliance for 300 Linden Ponds Way, DEP No. 034-0708 to June 23, 2025. The motion passed by a roll call vote 5-0.

In Favor: Carolyn Nielsen, Henry Hidell, Robert Mosher, Thomas Roby, and Laurie Freeman

Opposed: None

b) CONT. 300 Linden Ponds Way, DEP No. 034-1264 (from 11/18/24)

Vote: Commissioner Freeman made a motion, seconded by Commissioner Hidell, to continue consideration of Request for Certificate of Compliance for 300 Linden Ponds Way, DEP No. 034-1264 to June 23, 2025. The motion passed by a roll call vote 5-0.

In Favor: Carolyn Nielsen, Henry Hidell, Robert Mosher, Thomas Roby, and Laurie Freeman.

Opposed: None

c) CONT. 30 Summer Street, DEP No. 034-1472, Town of Hingham (from 11/18/24)

Shannon Palmer, Conservation Officer, informed the Commission that the site is stable, the top coat had not been placed, and the soil remediation was completed. She recommended the Commission waive special condition #35 for the as-built plan and issue the COC as any further work would need to come back to the Commission for approval.

Vote: Commissioner Freeman made a motion, seconded by Commissioner Hidell, to waive condition #35 and issue a Certificate of Compliance for 30 Summer Street, DEP No. 034-1472. The motion passed by a roll call vote 5-0.

In Favor: Carolyn Nielsen, Henry Hidell, Robert Mosher, Thomas Roby, and Laurie Freeman
Opposed: None

d) CONT. 20 Andrews Isle, DEP No. 034-1380, Lindsey McClenning (from 11/4)

Shannon Palmer, Conservation Officer, informed the Commission that the mitigation planting were done successfully. She recommended the COC.

Vote: Commissioner Freeman made a motion, seconded by Commissioner Hidell, to issue a Certificate of Compliance for 20 Andrews Isle Road, DEP No. 034-1380. The motion passed by a roll call vote 5-0.

In Favor: Carolyn Nielsen, Henry Hidell, Robert Mosher, Thomas Roby, and Laurie Freeman
Opposed: None

e) CONT. 289 Whiting Street, DEP No. 034-1268, Boston Golf Club Inc. (from 11/4)

Sarah Stearns, Beals & Thomas, Project Representative, informed the Commission that the plans have been revised to reflect additional restoration within the 50ft Buffer Zone, proposing native vegetation for restoration of the unpermitted gravel area. Ms. Sterns explained The Club is amenable to instituting this plan and to continue to work with staff.

Ms. Palmer stated recommended staff continue to work with applicant to finalize the restoration plan and also recommended a continuance to the spring to allow for the plantings.

The Commission was amenable to have staff continue to work with Beals & Thomas on final plans.

Vote: Commissioner Freeman made a motion, seconded by Commissioner Hidell, to continue consideration of Request for Certificate of Compliance 289 Whiting Street, DEP 0341268 to June 23, 2025. The motion passed by a roll call vote 5-0.

In Favor: Carolyn Nielsen, Henry Hidell, Robert Mosher, Thomas Roby, and Laurie Freeman
Opposed: None

f) CONT. Baker Hill Drive, Christina Estates Subdivision, DEP No. 034-569, Christina Estates HOA, LLC

Vote: Commissioner Freeman made a motion, seconded by Commissioner Hidell, to continue consideration of the Request for Certificate of Compliance for Baker Hill Drive, Christina Estates Subdivision, DEP No. 034-569, to January 27, 2025. The motion passed by a roll call vote 5-0.

In Favor: Carolyn Nielsen, Henry Hidell, Robert Mosher, Thomas Roby, and Laurie Freeman
Opposed: None

Public Meetings

1. Request for Determination of Applicability, 25 Clubhouse Drive, Black Rock Country Club, LLC

Cameron Larson, Environmental Consulting & Restoration (ECR), Project Representative, explained to the Commission the proposed project which includes reconstruction of an existing concrete patio within the 100ft Buffer Zone. He noted the proposed in-ground pool will be outside of the buffer.

Shannon Palmer questioned if there will be a stock pile location for any material to be removed.

Mr. Larson explained there is not a location shown on the plan but they will be sure to have it outside the buffer zone.

Commissioners had no comments or questions.

Vote: Commissioner Freeman made a motion, seconded by Commissioner Hidell, to issue a Negative #3 and #6 Determination of Applicability for 25 Clubhouse Drive with Findings of Fact A and B and Special Conditions 1 through 3 of the Staff Memo.

Recommended Findings of the Fact

- A. The work described is within Areas Subject to Protection under the Town of Hingham Wetland Regulations, Sections 21.1 (Riverfront Area) and 22.0 (Buffer Zone), and the Commission finds the areas are significant to the following wetland values: protection of public or private water supply, protection of groundwater, flood control, erosion and sedimentation control, storm damage prevention, prevention of water pollution, protection of fisheries, protection of wildlife and wildlife habitat, protection of rare species habitat, protection of recreation and protection of aesthetics.
- B. With incorporation of the special conditions included in this Order, the proposed work has been found to comply with the performance standards set forth under Section 22.0(d) and 23.1 of the Hingham Wetland Regulations and will not alter or adversely affect the adjacent Resource Areas.

Recommended Conditions

- 1) Erosion and sediment control devices shall be inspected routinely and repaired or replaced as necessary.
- 2) There shall be no stockpiling of soil or other materials within 100 feet of any resource area.
- 3) Under no conditions shall operation of equipment, storage of materials, or other site disturbance take place on the wetland side of the limit of work line/erosion control line. Additionally, no vehicle or other machinery refueling, lubrication, or maintenance shall take place within 100 feet of any resource area.

The motion passed by a roll call vote 5-0.

In Favor: Carolyn Nielsen, Henry Hidell, Robert Mosher, Thomas Roby, and Laurie Freeman

Opposed: None

Public Hearings- Commissioner Nielsen read the public hearing statement

- 1. CONT. Notice of Intent, 6 Whiton Ave. Notice of Intent, DEP No. 034-1511, ALR Homes (from 11/18/24)
The hearing was continued to allow staff time to review revised materials submitted prior to the first hearing.

Meeting Documents & Exhibits: Site Plan and Staff Memo

Paul Seaberg, Grady Consulting, Project Representative, explained to the Commission the proposal for a raise and rebuild of a single family home within the Flood Zone (no other resource areas present). Mr. Seaberg noted the proposed paved driveway is outside the flood zone.

Shannon Palmer, Conservation Officer, explained that the project includes installation of flood vents, will be built using flood resistant construction, and also added dry wells for roof recharge. She indicated that, in her opinion, the proposal met the requirements of Special Flood Hazard Zone section of the HWR, and recommended issuing an Order of Conditions.

Commissioner Nielsen questioned if there is access to the crawl space. Mr. Seaberg confirmed there will be access from the outside.

Vice Chair Nielsen opened the discussion to members of the public. No member of the public came forward.

Vote: Commissioner Freeman made a motion, seconded by Commissioner Hidell, to close the public hearing for 6 Whiton Ave, DEP No. 034-1511, and issue an Order of Conditions with Findings of Fact and Special Conditions as noted in the staff memo.

Recommended Findings of Fact

- A. The work described is within an Area Subject to Protection under the Town of Hingham Wetland Regulations, Land Subject to Coastal Storm Flowage (LSCSF) (EL. 10), and the Commission finds the area is significant to the following wetland values: protection of public or private water supply, protection of groundwater, flood control, erosion and sedimentation control, storm damage prevention including coastal storm flowage, prevention of water pollution, protection of fisheries, protection of shellfish, protection of wildlife and wildlife habitat, protection of rare species habitat, protection of recreation and open space, protection of aesthetics.
- B. As demonstrated in the revised Notice of Intent Narrative dated November 18, 2024, prepared by Grady Consulting, the project has been designed to comply with the performance standards set forth under section 21.1 of the Hingham Wetland Regulations for work within LSCSF, and will not result in an adverse effect upon the wetland values of this resource areas. The reconstructed residence will be built using flood resistant construction and will increase flood storage capacity of the site by approximately 174 cubic feet through the use of flood vents.
- C. The project is also within a Special Flood Hazard Zone (Flood Zone AE) as defined in the HWR and the Commission has determined the project complies with Section 24.0 of the HWR as it will improve existing conditions by removing a structure within the flood zone that is not flood resistant, constructing a new, flood resistant structure elevated above the flood zone, and allowing for passage of flood waters through the use of engineered flood vents in the crawl space foundation. Furthermore, the proposed work will not result in an increase in flood levels within the community during the occurrence of the base flood discharge compared to existing conditions.
- D. The Commission has determined the project complies with the Massachusetts Wetlands Protection Act, M.G.L. Ch. 131 §40 and Implementing Regulations, 310 CMR 10.00, and the Hingham Wetlands Protection Bylaw (Article 22) and Wetland Regulations.

Recommended Special Conditions

- 23. Engineered Flood Vents (7 total) shall be installed as shown on plan prepared by Grady Consulting LLC. dated revised November 15, 2024. Proof of installation shall be documented in the PE Certification required for the Request for Certificate of Compliance referenced in Special Condition #26.

24. Rooftop runoff from the residence shall be infiltrated on site using roof recharge unit(s) as shown on revised plan referenced dated November 15, 2024 prepared by Grady Consulting LLC. and stamped by Richard J. Grady, PE. Documentation, including photographs and an affidavit from a qualified individual, shall be submitted to the Conservation Commission upon completion of installation and prior to issuance of a Certificate of Compliance.
25. Prior to any site disturbance, tree protection (including snow fence at the drip line) shall be implemented for the 26" deciduous tree at front of lot and shall be approved by the Conservation Officer during the required Pre-Construction Meeting (see Hingham Standard Condition #3).
26. Upon completion of construction and prior to issuance of a Certificate of Compliance, the Applicant shall submit to the Conservation Commission a Final As-Built Plan stamped by a Professional Land Surveyor licensed in the Commonwealth of Massachusetts and a certification letter stamped by a Professional Civil Engineer licensed in the Commonwealth of Massachusetts stating that the work has been built in "substantial compliance" with the plans approved by the Conservation Commission (to include required foundation flood vents). All deviations from the approved plans must be noted in the letter. The As-Built Plan shall include at a minimum:
 - a) All wetland resource area boundaries with associated buffer zones;
 - b) Locations and elevations of all hardscapes and structures within jurisdictional areas;
 - c) A line delineating the limit of work- "work" includes any filling, excavating and/or disturbance of soils or vegetation approved under this Order.

The motion passed by a roll call vote 5-0.

In Favor: Carolyn Nielsen, Henry Hidell, Robert Mosher, Thomas Roby, and Laurie Freeman

Opposed: None

2. CONT. 55 Industrial Park Rd. Notice of Intent, DEP No. 034-1516 (from 11/18/24)

The applicant requested a continuance to complete plan revisions and peer review process through Planning Board.

Vote: Commissioner Hidell made a motion, seconded by Commissioner Mosher, to continue the public hearing for 55 Industrial Park Rd., DEP No. 034-1516 at request of the applicant, to January 13, 2025 at 7PM. The motion passed by a roll call vote 5-0.

In Favor: Carolyn Nielsen, Henry Hidell, Robert Mosher, Thomas Roby, and Laurie Freeman

Opposed: None

3. CONT. 311 Rockland St. Notice of Intent, DEP No. 034-1501, Rankin Residential (from 11/18/24)

The applicant requested a continuance to continue working on alternative means of access.

Vote: Commissioner Mosher made a motion, seconded by Commissioner Freeman, to continue the public hearing for 311 Rockland St., DEP No. 034-1501, at request of applicant, to January 13, 2025 at 7PM. The motion passed by a roll call vote 5-0.

In Favor: Carolyn Nielsen, Henry Hidell, Robert Mosher, Thomas Roby, and Laurie Freeman

Opposed: None

4. CONT. 20 Broad Cove Rd. Request for Amended OOC, DEP No. 034- 1477, Doug Karo (from 10/21)

The hearing was continued to allow the applicant time to complete stormwater peer review through the Planning Board.

Meeting Documents & Exhibits: Site Plan and Staff Memo

Cameron Larson, Environmental Consulting & Restoration (ECR), Project Representative, explained the applicant has completed the peer review and obtained Site Plan approval through the Planning Board. He further explained the applicant's want for accent lighting on the back of the building, noting the applicant is amendable to the use of 'up lighting' instead of 'down lighting' in response to staff's concerns with proximity to the cove.

Shannon Palmer, Conservation Officer, explained the review of the stormwater management was completed by Pat Brennan, PE for the PB with no substantive changes. She also clarified the concern with the lighting in the rear of building is the potential effect on marine organisms in the salt marsh and cove.

Commissioner Hidell questioned the need for the lighting.

Mr. Larson explained it is for showcase of the building.

Commissioner Nielsen expressed concern over the lighting affecting wildlife.

Commissioner Hidell questioned the lighting wavelength that will be used.

Mr. Larson explained it would be a soft white lighting.

Commissioner Freeman asked for clarification on where the lighting would fall in regard to the resource area.

Ms. Palmer explained it would be within the resource area, since the building is cantilevered over Broad Cove and the lighting is proposed for aesthetic purposes.

Commissioner Nielsen indicated that the consensus of the Commission is to deny the proposed lights however expressed appreciation of other changes made to improve the site.

Commissioner Nielsen noted disappointment in privet hedge on the site plan instead of native planting.

Vice Chair Nielsen opened the discussion to members of the public. No member of the public came forward.

Vote: Commissioner Freeman made a motion, seconded by Commissioner Mosher, to close the public hearing for 20 Board Cove Road, DEP No. 034-1477, and issue an Amended Order of Conditions with Amended Findings of Fact A through E and Special Conditions 43-46; 43 to be amended to submit revised lighting plan eliminating lights on the rear of the building facing Broad Cove, as noted in the staff memo.

Recommended Amended Findings of Fact

- A. The Conservation Commission considered a Request to Amend the Final Order of Conditions (issued on November 9, 2023) submitted by SITEC Engineering and Environmental Consulting, Inc. to reflect proposed changes to the approved project plan. Based on review of submitted documentation and testimony presented at the public hearing on October 21, 2024, the Commission determined that the purpose of the project has not changed, the scope of the project remains unchanged, and the potential for adverse impacts to protected statutory interests will be lessened. Therefore, a new

Notice of Intent is not required. The proposed modifications will result in a reduction of impervious area as well as a new stormwater system to collect, treat and infiltrate stormwater runoff.

- B. The work described is within Areas Subject to Protection under the Wetlands Protection Act (M.G.L. c. 131, § 40) and the Town of Hingham Wetland Regulations, Land Subject to Coastal Storm Flowage (LSCSF) and the 100 foot Buffer Zone to Salt Marsh and Coastal Bank, and the Commission finds the areas area significant to the following wetland values: protection of public or private water supply, protection of groundwater, flood control, erosion and sedimentation control, storm damage prevention including coastal storm flowage, prevention of water pollution, protection of fisheries, protection of shellfish, protection of wildlife and wildlife habitat, protection of rare species habitat, protection of recreation and open space, protection of aesthetics. The project has been found to comply with the performance standards for work in LSCSF and Buffer Zone and will not alter or adversely affect the resource areas.
- C. For the purpose of this filing, the Commission confirms the boundary of Salt Marsh (flags SM1 to SM9) as delineated by Environmental Consulting and Restoration (ECR) on August 25, 2022.
- D. The redevelopment project has been designed to meet the Stormwater Standards set forth under 310 CMR 10.05(6)(k) as demonstrated in the Stormwater Report Narrative prepared by SITEC Engineering and Environmental Consulting, Inc. The proposed stormwater system incorporates Best Management Practices (BMPs) to address stormwater runoff, water quality and water quantity and will consist of trench drains to collect stormwater from significant portions of the paved parking area and convey it through treatment units into an infiltration trench. Furthermore, an Operation and Maintenance Plan has been developed for the post-construction stormwater BMPs, as well as a Long-Term Pollution Prevention Plan to ensure suitable practices are implemented for source control and pollution prevention.
- E. With incorporation of the special conditions included in this Amended Order of Conditions, the Commission has determined the project complies with the Massachusetts Wetlands Protection Act, M.G.L. Ch. 131 §40 and Implementing Regulations, 310 CMR 10.00, and the Hingham Wetlands Protection Bylaw (Article 22) and Wetland Regulations.

Recommended Amended Special Conditions:

- 43. Prior to commencement of site work or Conservation sign off on building permits, the applicant shall submit a revised lighting plan eliminating the downlights on the rear of the building facing Broad Cove.
- 44. All post-construction stormwater best management practices shall be operated and maintained as specified in the Operation and Maintenance Plan prepared by SITEC Engineering and Environmental Consulting, Inc. dated revised October 2024, and incorporated in this Amended Order of Conditions. The responsible party for operation and maintenance of the stormwater management system is the Douglas Karo and any successors or assigns. This condition shall apply in **perpetuity** and shall not expire with the issuance of a Certificate of Compliance.
- 45. An annual maintenance report including checklists shall be provided to the Conservation Commission prior to December 1st of each calendar year following completion of construction of the stormwater system. Reporting shall document the operation and maintenance procedures, as referenced in Condition #44 above, which have been met for that year. The Commission reserves the right to require additional reporting if deemed necessary to ensure compliance with the Operation and Maintenance Plan. This reporting requirement will follow the issuance of a Certificate of Compliance, unless otherwise approved by the Commission.
- 46. Upon completion of construction and prior to issuance of a Certificate of Compliance, the Applicant shall submit to the Conservation Commission a Final As-Built Plan stamped by a Professional Land Surveyor licensed in the Commonwealth of Massachusetts and a certification letter stamped by a Professional Civil Engineer licensed in the Commonwealth of Massachusetts stating that the work

has been built in “substantial compliance” with the plans approved by the Conservation Commission. All deviations from the approved plans must be noted in the letter. The As-Built Plan shall include at a minimum:

- a. All wetland resource area boundaries with associated buffer zones;
- b. Locations and elevations of all stormwater management conveyances and structures;
- c. Restoration planting area constructed under this Order.

The motion passed by a roll call vote 4-0-1.

In Favor: Carolyn Nielsen, Henry Hidell, Robert Mosher, and Laurie Freeman

Abstained: Commissioner Roby

Opposed: None

5. 43 Wanders Dr. Notice of Intent, DEP No. 034-1515, Justin Lynch

Proof of abutter notification was submitted to the Conservation office and included certified mail receipts and an Affidavit of Service by Kenneth Thompson.

Meeting Documents & Exhibits: Site Plan and Staff Memo

Ken Thomson, PWS, Project Representative, explained to the Commission the proposed project, which includes the construction of a two-story 728 SF detached garage within the 50-100 foot Buffer Zone to Bordering Vegetated Wetlands. The garage will be located in an existing disturbed area. Also proposed is a mitigation planting area (734 SF) of highbush blueberries to compensate for the increase in impervious area and roof infiltration to recharge runoff associated with the garage. Mr. Thomson further explained that although the USGS depicts a blue line behind the property, he found no stream bank or flow at the site and therefore no riverfront.

Conservation Officer Shannon Palmer stated that she conferred with DEP on the blue line stream issue and the DEP Analyst recommended the Commission make a finding to confirm the lack of riverfront area based on site observations. She had no other issues with the proposal.

Vice Chair Nielsen questioned if any invasive species are present and if there is a plan to remove those.

Mr. Thomson was in agreement to remove invasive species.

Vice Chair Nielsen opened the discussion to members of the public. No member of the public came forward.

Vote: Commissioner Freeman made a motion, seconded by Commissioner Mosher, to close the public hearing for 43 Wanders Dr., DEP No. 034-1515, and issue an Order of Conditions with Findings of Fact and Special Conditions as noted in the staff memo.

Recommended Findings of Fact

- A. Based on submitted documentation including narrative, photographs, and exhibits prepared by Ken Thomson, PWS, as well as staff observations of the site made on November 19, 2024, the Commission finds there is no river as mapped on the most recent USGS and therefore no associated Riverfront Area on the subject property.
- B. The work described is within an Area Subject to Protection under the Town of Hingham Wetland Regulations, Section 22.0 (Buffer Zone), and the Commission finds the area is significant to the following wetland values: protection of public or private water supply, protection of groundwater, flood control, erosion and sedimentation control, storm damage prevention, prevention of water

pollution, protection of fisheries, protection of wildlife and wildlife habitat, protection of rare species habitat, protection of recreation and protection of aesthetics.

- C. With incorporation of the special conditions included in this Order, including infiltration of roof runoff and buffer zone mitigation, the proposed work has been found to comply with the performance standards set forth under Section 22.0(d) of the Hingham Wetland Regulations and will not alter or adversely affect the adjacent Resource Area.
- E. The Commission has determined the project complies with the Massachusetts Wetlands Protection Act, M.G.L. Ch. 131 §40 and Implementing Regulations, 310 CMR 10.00, and the Hingham Wetlands Protection Bylaw (Article 22) and Wetland Regulations.

Recommended Special Conditions

- 23. The wetland Mitigation Area (734 SF) shall be installed as shown on the approved Project Plan dated revised November 12, 2024 prepared by Hoyt Land Surveying. Other native shrubs may be incorporated into the planting area to provide more plant diversity. Any changes to the plant selections or quantities shall be submitted to Conservation for review and approval prior to installation. The Mitigation Area shall be prepared for planting by removing existing lawn, followed by minor grading or raking and coverage by topsoil if necessary. After planting, the remaining area shall be seeded with native plant seeds (either a mix or individual species) or planted with native ground cover (mulching shall be minimized to encourage growth of the natural buffer and is generally only allowed around individual plants that are still establishing roots, as necessary.) Planting of the mitigation area shall be prioritized and installed during the first growing season (April - November) following issuance of this Order, as practical, to allow for the required two growing season survival requirement (special condition #26).
- 24. Upon installation of the mitigation area, the applicant shall notify the Conservation office in writing and include specific information on the installation date(s), plant species, quantity and size of plants, and seed mix installed, as applicable.
- 25. All mitigation plantings shall be native species; no cultivars, non-native species, or invasive species shall be allowed. Following planting, the Mitigation Area shall be allowed to naturally revegetate with native species and remain as a naturally vegetated buffer to the adjacent resource area. Mitigation areas shall not be disturbed, mowed or maintained as a landscaped area. This condition shall apply in **perpetuity** and shall not expire with the issuance of a Certificate of Compliance.
- 26. Prior to the issuance of a Certificate of Compliance, the mitigation area plantings shall survive at least two full growing seasons, unless otherwise approved by the Commission, with a minimum of 75% survival rate. If a 75% survival rate is not achieved, replacement plantings of the same species, or equivalent to be approved by the Conservation Officer, shall be made by the applicant. A written assessment shall be submitted with a Request for COC documenting the status of the plantings including number and species planted and survival rate. A Partial Certificate of Compliance (if requested by the applicant) will only be considered if the mitigation area has been planted and seeded in accordance with the approved plan.
- 27. Rooftop runoff from the garage shall be infiltrated on site using roof recharge unit(s) as shown on approved plan dated November 12, 2024 prepared by Hoyt Land Surveying, and stamped by Peter Hoyt, PLS. Documentation, including photographs and an affidavit from a qualified individual, shall be submitted to the Conservation Commission upon completion of installation and prior to issuance of a Certificate of Compliance.
- 28. After completion of work and prior to the issuance of a Certificate of Compliance, the applicant shall permanently mark the Mitigation Area referenced in special condition #23 to ensure no inadvertent encroachment into the area. The markers shall be installed in coordination with the Conservation Officer and shall remain in place in perpetuity.

29. Upon completion of construction and prior to issuance of a Certificate of Compliance, the Applicant shall submit to the Conservation Commission a Final As-Built Plan stamped by a Professional Land Surveyor licensed in the Commonwealth of Massachusetts and a certification letter stamped by a Professional Civil Engineer licensed in the Commonwealth of Massachusetts stating that the work has been built in "substantial compliance" with the plans approved by the Conservation Commission (to include stone trench and grass paver turn around). All deviations from the approved plans must be noted in the letter. The As-Built Plan shall include at a minimum:
- a) All wetland resource area boundaries with associated buffer zones;
 - b) Locations and elevations of all retaining walls and stormwater management conveyances and structures within jurisdictional areas;
 - c) A line delineating the limit of work- "work" includes any filling, excavating and/or disturbance of soils or vegetation approved under this Order;
 - d) Mitigation planting area constructed under this Order.

The motion passed by a roll call vote 5-0.

In Favor: Carolyn Nielsen, Henry Hidell, Robert Mosher, Thomas Roby, and Laurie Freeman

Opposed: None

6. 300 Whiting St. Notice of Intent, DEP No. 034-1512, David & Brandy Nickerson
Proof of abutter notification was submitted to the Conservation office and included certified mail receipts and an Affidavit of Service by Tricia Turchinetz of ECR.

Meeting Documents & Exhibits: Site Plan and Staff Memo

Cameron Larson, Environmental Consulting & Restoration (ECR), Project Representative, explained to the Commission the proposed project which includes razing an existing single-family home and reconstructing a new single family residence of 1534 SF. The proposal also includes a deck and front porch as well as roof recharge for the new structure. All work is located in the outer 100-200 foot Riverfront Area and the 100-foot Buffer Zone. Mr. Larson noted the reduction in footprint of proposed dwelling and location further from the resource area.

Shannon Palmer, Conservation Officer, indicated the proposal complies with the riverfront regulations and will result in a reduction in degraded area within the resource area. Ms. Palmer also explained the local regulations define riverfront differently than the WPA and she requested ECR to further define the boundary of the inland bank which was provided. Ms. Palmer stated her comments had been address and she had no further issues.

Vice Chair Nielsen opened the discussion to members of the public. No member of the public came forward.

Vote: Commissioner Freeman made a motion, seconded by Commissioner Mosher, to close the public hearing for 300 Whiting St., DEP No. 034-1512, and issue an Order of Conditions with Findings of Fact and Special Conditions as noted in the staff memo.

Recommended Findings of Fact

- A. The work described is within an Area Subject to Protection under the Wetlands Protection Act, M.G.L. Ch. 131, § 40, Riverfront Area, and will result in 4,010 square feet of alterations in the outer 100-200 foot zone. The project reduces the total degraded Riverfront Area onsite by 963 square feet.

- B. The work described is within an Area Subject to Protection under the Town of Hingham Wetland Regulations, Section 21.1, Riverfront Area, and the Commission finds the area is significant to the following wetland values: protection of public or private water supply, protection of groundwater, flood control, erosion and sedimentation control, storm damage prevention, prevention of water pollution, protection of fisheries, protection of shellfish, protection of wildlife and wildlife habitat, protection of rare species habitat, protection of recreation and protection of aesthetics. The Commission has determined the Mean Annual High Water is coincident with the boundary of Inland Bank as documented by Brad Homes, PWS, of Environmental Consulting and Restoration (ECR) and as such was used to delineate the riverfront area on the subject property.
- C. As documented in the Performance Standards Analysis prepared by Environmental Consulting and Restoration (ECR) submitted with the Notice of Intent, the project has been designed to comply with the standards set forth under 310 CMR 10.58(5) and Section 21.1(d) of the Hingham Wetland Regulations for redevelopment in the Riverfront Area. Based on review of the submitted documentation, the Commission has determined there are no practical and substantially equivalent economic alternatives to the proposed project with less adverse effects on the resource area, and the work will have no significant adverse impact on the Riverfront Area to protect the wetland values identified in the Hingham Wetlands Protection Bylaw and the interests identified in the Wetlands Protection Act.
- D. With incorporation of the special conditions included in this Order, the Commission has determined the project complies with M.G.L. Ch. 131 §40 and Implementing Regulations, 310 CMR 10.00, and the Hingham Wetlands Protection Bylaw (Article 22) and Wetland Regulations.

Recommended Special Conditions

- 23. Rooftop runoff from the residence shall be infiltrated on site using roof recharge unit(s) as shown on the approved revised plan (sheet 2) dated December 11, 2024 prepared by Fieldstone Survey Services and stamped by Stephen P. Dyer, PLS. A detail and sizing calculation for the infiltration units shall be submitted at the Pre-Construction meeting required by Standard Condition #3. Documentation, including photographs and an affidavit from a qualified individual, shall be submitted to the Conservation Commission upon completion of installation and prior to issuance of a Certificate of Compliance.
- 24. Upon completion of construction and prior to issuance of a Certificate of Compliance, the Applicant shall submit to the Conservation Commission a Final As-Built Plan stamped by a Professional Land Surveyor licensed in the Commonwealth of Massachusetts and a certification letter stamped by a Professional Civil Engineer licensed in the Commonwealth of Massachusetts stating that the work has been built in “substantial compliance” with the plans approved by the Conservation Commission. All deviations from the approved plans must be noted in the letter. The As-Built Plan shall include at a minimum:
 - a) All wetland resource area boundaries with associated buffer zones;
 - b) Locations and elevations of all stormwater management conveyances and structures within jurisdictional areas;
 - c) A line delineating the limit of work- “work” includes any filling, excavating and/or disturbance of soils or vegetation approved under this Order.

The motion passed by a roll call vote 5-0.

In Favor: Carolyn Nielsen, Henry Hidell, Robert Mosher, Thomas Roby, and Laurie Freeman

Opposed: None

7. 166 Hersey Street Notice of Intent, DEP No. 034-1517

Proof of abutter notification was submitted to the Conservation office including certified mail receipts and Affidavit of Service by Joshua Green.

Meeting Documents & Exhibits: Site Plan and Staff Memo

Josh Green, PE, Homestead Consulting Engineers, Project Representative, explained the proposed project to the Commission which includes the construction of a new 31' x 14' in-ground pool with surrounding patio (528 SF) and associated fencing. The proposed work is located in the 50-100 foot Buffer Zone and mitigation plantings are proposed along vegetated wetland in the rear which was flagged by ECR.

Shannon Palmer, Conservation Officer, stated her comments had been addressed with exception of the mitigation planting plan which has been added as a recommended special condition.

Vice Chair Nielsen questioned if the Bordering Vegetative Wetland was entirely phragmites.

Mr. Green noted he was unsure.

Ms. Palmer noted the wetland was predominantly phragmites and in this area it would be unreasonable to request removal. The Commission was in agreement to let staff handle the planting plan.

Vice Chair Nielsen opened the discussion to members of the public. No member of the public came forward.

Note: Commissioner Hidell made a motion, seconded by Commissioner Mosher, Close the public hearing for 166 Hersey Street, DEP No. 034-1517, and issue an Order of Conditions with Special Conditions and Findings of Fact as noted in the staff memo.

Recommended Findings of Fact

- E. The work described is within an Area Subject to Protection under the Town of Hingham Wetland Regulations, Section 22.0, (Buffer Zone) and the Commission finds the area is significant to the following wetland values: protection of public or private water supply, protection of groundwater, flood control, erosion and sedimentation control, storm damage prevention, prevention of water pollution, protection of fisheries, protection of wildlife and wildlife habitat, protection of rare species habitat, protection of recreation and protection of aesthetics.
- F. With incorporation of the special conditions included in this Negative Determination, including buffer zone restoration, the proposed work has been found to comply with the performance standards set forth under Section 22.0(d) of the Hingham Wetland Regulations and will not alter or adversely affect the adjacent Resource Area.
- G. The Commission has determined the project complies with the Massachusetts Wetlands Protection Act, M.G.L. Ch. 131 §40 and Implementing Regulations, 310 CMR 10.00, and the Hingham Wetlands Protection Bylaw (Article 22) and Wetland Regulations.

Recommended Special Conditions

- 23. Prior to commencement of site work or the Pre-Construction Meeting (see Hingham Standard Condition #3), the applicant shall submit a final mitigation planting plan to the Commission for review and approval, for the increase in impervious area (933 SF) resulting from the in ground pool and patio. The mitigation plan shall comply with the Commission's Buffer Zone Mitigation Policy.
- 24. The wetland Mitigation Area (933 SF) shall be installed in accordance with the final mitigation plan to be submitted in accordance with Special Condition #23. Any changes to the plant selections or quantities shall be submitted to Conservation for review and approval prior to installation. Planting of the mitigation area shall be prioritized and installed during the first growing season (April - November)

following issuance of this Order, as practical, to allow for the required two growing season survival requirement (special condition #26).

25. Upon installation of the mitigation area, the applicant shall notify the Conservation office in writing and include specific information on the installation date(s), plant species, quantity and size of plants, and seed mix installed, as applicable.
26. All mitigation plantings shall be native species; no cultivars, non-native species, or invasive species shall be allowed. Following planting, the Mitigation Area shall be allowed to naturally revegetate with native species and remain as a naturally vegetated buffer to the adjacent resource area. Mitigation areas shall not be disturbed, mowed or maintained as a landscaped area. This condition shall apply in **perpetuity** and shall not expire with the issuance of a Certificate of Compliance.
27. Prior to the issuance of a Certificate of Compliance (COC), the mitigation area plantings shall survive at least two full growing seasons, unless otherwise approved by the Commission, with a minimum of 75% survival rate. If a 75% survival rate is not achieved, replacement plantings of the same species, or equivalent, to be approved by the Conservation Officer, shall be made by the applicant. A written assessment shall be submitted with a Request for COC documenting the status of the plantings including number and species planted and survival rate. A Partial Certificate of Compliance (if requested by the applicant) will only be considered if the mitigation area has been planted and seeded in accordance with the approved plan.
28. There shall be no direct discharge of any pool water to the wetland resource area or within the 0-50 foot Buffer Zone. If required for emergency repairs or maintenance, discharge may be allowed in the Buffer Zone, as far from the wetland as practical, only after the water has de-chlorinated (if applicable) for a period of 10 days.

The motion passed by a roll call vote 5-0.

In Favor: Carolyn Nielsen, Henry Hidell, Robert Mosher, Thomas Roby, and Laurie Freeman

Opposed: None

8. 15 Merrill St. Notice of Intent, DEP No. 034-1513, Hingham Bay at Merrill LLC

Proof of abutter notification was submitted to the Conservation office including certified mail receipts and Affidavit of Service by Jed Hannon.

Meeting Documents & Exhibits: Site Plan and Staff Memo

Jed Hannon, PE, of Atlantic Coast Engineering, Project Representative, explained the proposed project to the Commission which includes the replacement of 4 steel piles on an existing pier and the removal and replacement of the existing longitudinal 4'x8' bracing. Mr. Hannon stated the existing pier is over 20 years old and requires maintenance to ensure the structural integrity. Resource areas include Land Subject to Coastal Storm Flowage (LSCSF), Land Under Ocean, Land Containing Shellfish and Coastal Beach/Tidal Flat.

Shannon Palmer, Conservation Officer, indicated DMF had no comments on the proposal. Best practices will be implemented to avoid impacts to coastal resource areas and wildlife. Ms. Palmer recommended the hearing be closed and an Order of Conditions be issued.

Vice Chair Nielsen opened the discussion to members of the public. No member of the public came forward.

Vote: Commissioner Mosher made a motion, seconded by Commissioner Freeman, to close the public hearing for 15 Merrill St., DEP No. 034-1513 and issue an Order of Conditions with Special Conditions and Findings of Fact as noted in the staff memo.

Recommended Findings of Fact

- A. The work described is within an Areas Subject to Protection under the Wetlands Protection Act, M.G.L. Ch. 131, § 40 the Town of Hingham Wetlands Protection Bylaw (Article 22 of the General Bylaws), Land Under the Ocean, Land Containing Shellfish, Land Subject to Coastal Storm Flowage, and Coastal Beach/Tidal Flat, and will result in 4 square feet of alteration resulting from pile installation. As demonstrated in the revised Notice of Intent Narrative prepared by Atlantic Coast Engineering, LLC, dated December 3, 2024, the project has been designed to comply with the performance standards set forth under 310 CMR 10.25, 10.27 (3) through (7) and 10.34, and will not have any adverse effects on the wetland values of Land Under the Ocean, Land Containing Shellfish, or Coastal Beach/Tidal Flat.
- B. The Conservation Commission finds the areas in which work is proposed is significant to the following additional wetland values: protection of public or private water supply, protection of groundwater, flood control, erosion and sedimentation control, storm damage prevention including coastal storm flowage, prevention of water pollution, protection of fisheries, protection of shellfish, protection of wildlife and wildlife habitat, protection of rare species habitat, protection of recreation and open space, protection of aesthetics.
- C. As demonstrated in the revised Notice of Intent Narrative prepared by Atlantic Coast Engineering, LLC, dated December 3, 2024, the project has been designed to comply with the performance standards set forth under Sections 17.1(d), 18.2(d), 18.5(d), 20.1(d) of the Hingham Wetland Regulations for work within Land Under the Ocean, Land Containing Shellfish, Land Subject to Coastal Storm Flowage, and Coastal Beach/Tidal Flat, and will not result in an adverse effects upon the wetland values of these coastal resource areas. The proposed pile replacement project will incorporate best practices to minimize potential impacts to marine fisheries and shellfish. Therefore, the project has also demonstrated compliance with Section 23.4, Docks and Piers.
- D. With incorporation of the special conditions included in this Order, including the use of a vibrational hammer, slow hammer starts during pile removal and installation, and turbidity curtains, the Commission has determined the project complies with the Massachusetts Wetlands Protection Act, M.G.L. Ch. 131 §40 and Implementing Regulations 310 CMR 10.00 and the Hingham Wetlands Protection Bylaw (Article 22) and Wetland Regulations.

Recommended Special Conditions

- 23. Prior to commencement of work, copies of all federal, state, and local permits, certifications, and approvals, as applicable, shall be submitted to the Conservation office for review.
- 24. Prior to the commencement of work, silt curtains shall be installed around the pile sites as recommended by the Division of Marine Fisheries. Sediment controls shall be approved by the Conservation Officer at the Pre-Construction Meeting in accordance with Standard Condition #3.
- 25. No vehicle or other machinery refueling, lubrication, or maintenance, or storage of fuel or maintenance chemicals shall take place within 100 feet of any resource area.
- 26. Water based support equipment (construction barge or any other associated equipment) shall not be allowed to ground out at any time to avoid impacts to coastal resource areas and marine fisheries.
- 27. Pile installation shall be conducted using slow hammer starts to minimize impacts to marine fisheries and wildlife. Verification of equipment shall be provided at the pre-activity meeting required by Standard Condition #3.
- 28. The contractor responsible for work shall contain all construction materials used for pile replacements at the project site. Construction materials and debris shall be cleaned up and removed from the site daily after the completion of work.
- 29. Absolutely no release of any petroleum product, epoxies, resins, admixtures, touch-up coatings, or the like shall be permitted. Accidental releases shall be reported to the Harbormaster, Conservation Commission, project engineer, and if applicable, the U.S. Coast Guard. The contractor shall have on

site sufficient absorbent pads and booms to contain an accidental spill throughout the duration of pile work.

The motion passed by a roll call vote 5-0.

In Favor: Carolyn Nielsen, Henry Hidell, Robert Mosher, Thomas Roby and Laurie Freeman

Opposed: None

9. 35 Bel Air Rd. Notice of Intent, DEP No. 034-1514, Rutherford Realty Trust

The applicant requested a continuance to address staff comments and resubmit NOI materials.

Vote: Commissioner Freeman made a motion, seconded by Commissioner Mosher, to continue the public hearing for 35 Bel Air Road, DEP No. 034-1514, at the request of the applicant, to January 13, 2025 at 7PM. The motion passed by a roll call vote 5-0.

In Favor: Carolyn Nielsen, Henry Hidell, Robert Mosher, Thomas Roby and Laurie Freeman

Opposed: None

Other Business:

1. Conservation Officer Updates

Notification of 2 year Permit Extension Act in affect for permits in existence from 2023-2025.

Wetland buffer markers finalized and will be ordered for distribution.

Adjourn

Motion: Commissioner Hidell moved to adjourn the meeting. Commissioner Freeman seconded the motion. The motion passed by roll call vote 5-0.

Meeting adjourned at 8:28PM

Approved on 1/27/2025